

Mohd. Kasim v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 April 2023 · Writ-C No. 9473 of 2023 · **Petition dismissed as withdrawn after theft compounding.**

HEADNOTE

Writ seeking a personal hearing under Clause 8.1 of the U.P. Electricity Supply Code, 2005, and challenging a notification of 27 June 2006, dismissed as withdrawn after the petitioner deposited the amount, the theft was compounded, and the department asked that criminal proceedings be dropped. No Supply Code clause was construed.

FACTUAL SUMMARY

Mohd. Kasim challenged a notification of 27 June 2006 and sought a direction that the electricity department give him a personal hearing under Clause 8.1 of the U.P. Electricity Supply Code, 2005. On 24 March 2023 the department was allowed time to say whether any final assessment had been passed. On 3 April 2023 counsel stated that he had deposited the entire amount, the theft had been compounded, and a letter of 28 March 2023 asked the concerned authority to drop the criminal case. His deposit affidavit undertook to withdraw the writ.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

withdrawal after compounding

HOLDING

The writ was dismissed as withdrawn once counsel stated that the petitioner had deposited the entire amount, the theft offence had been compounded, and a communication dated 28 March 2023 had been sent to drop the criminal proceedings. The Court did not decide the challenge to the notification of 27 June 2006 or the prayer for a personal hearing under Clause 8.1. ¶ 2

PRINCIPLE TAGS

procedural-listing-no-construction The order only records deposit, compounding, and withdrawal. It does not construe Clause 8.1 or any other Supply Code provision. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY FINAL ASSESSMENT ORDER HAD BEEN PASSED, AND WHETHER THE PETITIONER WAS ENTITLED TO A PERSONAL HEARING UNDER CLAUSE 8.1 OR TO RELIEF AGAINST THE NOTIFICATION OF 27 JUNE 2006.

Left open because the petition was withdrawn after deposit and compounding. ¶ 1-2